

INDEPENDENT CONTRACTOR AGREEMENT

(Office Management Consultant)

This Independent Contractor Agreement ("Agreement") is made and entered into this ____ day of ____, 20____, by and between:

Byax Financial Services Ltd, a duly registered financial institution, having its principal office at Lukuli, Makindye (hereinafter referred to as the "Institution"),

AND

_____, an independent contractor engaged as an Office Management Consultant, holding contractor identification number _____, and stationed at Lukuli, Makindye (hereinafter referred to as the "Contractor").

1. Scope of Work

The Contractor agrees to provide office management and loan disbursement oversight services to the Institution, including but not limited to:

- Ensuring the smooth and efficient operation of the office and monitoring the performance of all contractors involved in loan processing and disbursement.
- Overseeing and managing loan disbursements to ensure timely, accurate, and secure handling of funds.
- Monitoring and safeguarding company finances related to loan disbursement and collections.
- Performing cashier duties, including handling cash inflows and outflows, recording transactions, and reconciling cash balances.
- Preparing and submitting daily and weekly operational and financial reports to management.
- Reporting any misconduct, negligence, fraud, or financial irregularities observed among contractors or staff.
- Coordinating with contractors to ensure compliance with institutional policies and procedures regarding loans and finance management.

2. Independent Contractor Status

- The Contractor shall perform services as an independent contractor and not as an employee, partner, or agent of the Institution.
- The Contractor shall be responsible for all taxes, insurance, and benefits associated with their services.
- The Contractor has no authority to bind the Institution or act on its behalf except as expressly authorized.

3. Responsibilities and Due Diligence

The Contractor affirms and guarantees:

- Active oversight of all loan disbursement activities to ensure accuracy, legitimacy, and compliance with the Institution's guidelines.
- Vigilant safeguarding of company finances and proper cashiering practices.
- Timely and accurate preparation of reports reflecting daily and weekly office activities, loan disbursement status, and financial reconciliations.
- Prompt reporting of any irregularities, misconduct, or breaches of policy by contractors or staff.

4. Financial Responsibility and Compensation

- The Contractor shall be responsible for managing and safeguarding the company's finances under their control, including funds disbursed and collected in relation to loan activities.
- The Contractor's remuneration shall be based on a mutually agreed arrangement, reflecting the scope and performance of their management duties.
- The Contractor shall be held liable for any financial losses caused by negligence, fraud, or theft attributable to their actions or omissions. Any such fraud or theft shall be subject to legal proceedings under the courts of law of Uganda.

5. Liability and Accountability

- The Contractor acknowledges responsibility for ensuring office operations and loan disbursement processes are conducted properly and securely.
- The Contractor understands that disciplinary and legal actions, including financial recovery measures, may be taken by the Institution in cases of negligence, misconduct, or breach of duties.

6. Term and Termination

- This Agreement shall commence on the date signed below and shall continue until terminated by either party with a written notice of at least thirty (30) days.
- The Institution shall not terminate this Agreement unless the Contractor has failed to deliver on their obligations and promises.
- This Agreement shall immediately cease to stand if either party reasonably feels insecure or unsafe regarding the continuation of the relationship.
- Neither party may terminate this Agreement immediately without prior written notice.

7. Confidentiality

- The Contractor agrees to maintain the confidentiality of all client information, financial data, loan application details, and Institution proprietary information obtained during the engagement.

8. Governing Law

This Agreement shall be governed by and construed in accordance with the laws of Uganda.

9. Consent and Acceptance

By signing this Agreement, the Contractor acknowledges understanding and acceptance of all terms and guarantees full responsibility for office management, financial safeguarding, and reporting duties as outlined.

IN WITNESS WHEREOF, the parties hereto have executed this Independent Contractor Agreement as of the date first above written.

CONTRACTOR (Office Management Consultant):

Full Name: _____

Contractor ID Number: _____

Signature: _____

Date: _____

FOR BYAX FINANCIAL SERVICES LTD:

Authorized Representative Name: _____

Designation: _____

Signature: _____

Date: _____

Witness:

Name: _____

Signature: _____

Date: _____